

# What India can Do

The country will have to improve its border management policies, take a leaf out of laws on terrorism in the UK and the US, apart from beefing up its intelligence network

■ By Saurabh Shukla

**IN SAFE HANDS:** The Metropolitan Police, UK

**A**s India becomes a prime target of a cocktail of terrorist groups, the country needs to take a radical relook at the anti-terror laws which leave much to be desired. The pitfalls in the legal system have allowed the accused in the transistor bomb blasts in Delhi to go scot free even after 23 years.



AP PHOTO/DAVE CAULKIN

With cases like the Mumbai blasts and the Delhi serial blasts still unsolved, terrorist groups feel emboldened and have continued to strike at Indian targets without fear. "Terrorists have a unified command and control system while India's response is scattered and sometimes absent," says an intelligence official. Though India has been at the forefront seeking a comprehensive UN convention on terrorism—wanting action against countries providing financial help and harbouring terrorists—differences on the definition of terrorism have grounded progress.

The abolition of the Prevention of Terrorism Act (POTA) in 2004 and the politicisation of its anti-terror response has left India with no effective Central law to counter terrorism. Worse, five states, which have lobbied for their own legislations, have found their bills gathering dust in the judicial division of the Home Ministry (*See box*). Gujarat's case for an organised anti-terror law has been pending since 2004, Rajasthan has not heard from the Centre since January 2006, Madhya Pradesh and Uttar Pradesh have seen their anti-terror bills pending since last year.

The lack of an effective anti-terror legislation is worsened by an abysmal police-population ratio of 126 per 1,00,000 (as against Western ratios that vary between 250 and over 500 per 1,00,000); Gujarat has a ratio of 152 per 1,00,000 (above the national average, but well below the 222 per 1,00,000 recommended internationally for peacetime policing). Moreover, policing is primitive in comparison to the modern resources that have been committed for law enforcement in the West. There are deficits in police staffing levels of between 10-40 per cent in various states.

Globally it has been accepted that terrorism cannot be treated as a simple law and order problem, and with terrorists becoming more advanced and many functioning with active help of countries that harbour them, it requires an extraordinary response to tackle them.

The USA Patriot Act of 2001 (Uniting and

**India should create a national database on terrorism, set up a joint task force on intelligence and strengthen its police-population ratio.**